

What Building Up Would Mean for Me

A plain-language companion to Building Up: Alberta Accessibility and Inclusion Blueprint

Produced by: The Alberta Disability System Breakdown

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A NOTE BEFORE READING.

Building Up is a proposed legislative framework for Alberta. It is written in the technical legal language that legislation requires, because every word in proposed legislation closes or opens a door. This document does not paraphrase Building Up. It is a parallel companion that talks about what life under that legislation could look like for a person navigating disability in Alberta.

If this legislation passed, the world would not change overnight. Legislation has to be enacted, regulations have to be drafted, and implementation has to follow. But the framework for what protections exist, who they exist for, and what counts as a barrier — that is what Building Up proposes to set.

THE SHIFT BUILDING UP REPRESENTS

Most Alberta disability programs ask one question: **Do you qualify?** They define disability narrowly. They require continuous, severe, permanent impairment. They use criteria that exclude many people whose lives are deeply affected by disability — people with mental health conditions, people with chronic pain or chronic fatigue, people with episodic conditions, people whose disabilities fluctuate, people whose disabilities are not visible.

Building Up asks a different question: **Is there a barrier?** It defines disability inclusively. It does not require continuous severity. It addresses barriers to participation, regardless of how the underlying condition is characterized in medical-model terms.

The shift is structural. The current programs decide who is "disabled enough" to receive supports. The proposed legislation decides whether a barrier exists, and protects participation regardless of whether the person also qualifies for income or service programs.

WHAT THIS COULD MEAN FOR...

Someone with depression, bipolar disorder, schizophrenia, or another mental health condition that operates episodically.

Under current Alberta program criteria, your eligibility for support depends on whether your condition meets the "severe and permanent" threshold during the assessment. If you have periods of remission and relapse, you may have been told that your condition is not permanent enough, that you can work, or that you do not qualify. Under Building Up's framework, the legislation's protections operate across the trajectory of your condition — during periods of impairment-driven limitation — regardless of whether the limitation operates continuously.

Someone with multiple sclerosis, lupus, or another condition that flares and remits.

You have likely been asked to demonstrate continuous severity in a system designed for static impairments. Building Up explicitly recognizes fluctuating disability and applies the legislation's protections during fluctuating periods.

Someone with chronic pain, chronic fatigue, fibromyalgia, dysautonomia, or other conditions where the diagnostic label is contested.

You have likely had your disability questioned because the medical-model diagnostic process produces variable results. Building Up operates on the substantive standard of barrier-interaction, not on diagnostic certainty.

Someone whose disability is not visible.

Many learning disabilities, many mental health conditions, many neurodivergent conditions, many chronic illnesses — your disability may not be recognized in services or workplaces because it does not appear externally. Building Up's framework explicitly includes disability that is not visible or apparent.

Someone whose disability does not meet AISH's severity threshold but still significantly affects participation.

A person whose impairment does not qualify them for AISH is, under Building Up's proposed definition, still a person with a disability for the purposes of accessibility and inclusion law. The legislation's protections operate independently of the eligibility criteria for income programs.

A family navigating FSCD, PDD, AISH, and now ADAP.

The fragmented categorical-program architecture has produced gaps that fall on families. Building Up proposes a substantive standards framework that operates alongside the categorical programs, addressing barriers regardless of which program a person does or does not qualify for.

An Indigenous Albertan navigating federal-provincial jurisdictional gaps.

Disability supports for Indigenous people in Alberta have historically fallen through cracks between Indigenous Services Canada and provincial systems. Building Up proposes substantive Indigenous-disability provisions operating within the substantive frameworks of Treaty 6, Treaty 7, Treaty 8, and the Métis Settlements.

A 2SLGBTQ+ disabled person, a racialized disabled person, a newcomer disabled person.

Building Up explicitly addresses how disability operates across intersecting identities — not as a separate identity to be addressed only after disability is addressed in isolation.

WHAT THIS IS NOT

This document does not promise immediate change. The legislation Building Up proposes has not been introduced. It is a framework offered to legislators, lawyers, and advocates as a starting point. Whether and when any portion of it is enacted depends on political and legislative processes that take time.

This document also does not replace Building Up. The protections described above are protections only if the legislative language that creates them is enacted as written. The technical precision of Building Up is what would make these protections defensible. This companion exists to show what the legislation aims at, not to substitute for it.

WHAT YOU CAN DO

Read Building Up if you are willing to read technical legal text. Share it with your MLA, your MP, with legal organizations and disability advocacy bodies. If you are a member of a legal clinic, an advocacy law practice, or a constitutional law program, consider whether the framework is suitable for legislative submission or strategic litigation.

If you are a member of the affected community, your voice on what Building Up addresses — and what it should also address — is part of the consultation process Building Up itself proposes the government must conduct. Consultation is what Building Up requires the government to do; it is also what we ask of you.

WHERE TO FIND THE FULL DOCUMENT

The full Building Up: Alberta Accessibility and Inclusion Blueprint is available at **albertadisabilitysystembreakdown.netlify.app**. The companion one-page introduction is also available at the same address.

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